The following error appears in the Corrected Petition for Approval of Minor's Compromise filed on June 23, 2026:

1. Part 10.b of the Petition includes a check that Defendants and amounts offered continued on Attachment 10b. This appears to be incorrect.
2. Part 12.b of the Petition is to indicate what medical expenses were paid and are to be reimbursed from the proceeds. It appears there were no medical expenses and thus no reimbursements, so none of the boxes should be checked.
3. Part 17.a.2 of the Petition indicates there is an agreement for services provided. Such should be should be attached as Attachment 17a. There is no attachment.
4. Part 17.c states the attorney "has not" received attorney's fees in addition to that requested in this petition for services provided, but then details "attorney has an expectation of receiving a 35% contingency fee on the remaining $375,000.00 settlement proceeds." The court does not approve the attorney fees being paid by all plaintiffs, only the fees being paid by Claimant. The court finds that Claimant's share of the attorney fees is reasonable but does not make any findings about the other plaintiffs' share of the fees. Petitioner should provide a revised Order that reflects only attorney's fees paid by Claimant, not all plaintiffs.
5. Part 18.a.3.b of the Petition indicates the proceeds will be invested in a single-premium deferred annuity, with terms and conditions specified in Attachment 18a(3)b). There is no Attachment 18a(3)(b) to the Petition.

Petitioner is directed to file a corrected petition prior to the hearing on the motion. Otherwise the Court is inclined to grant the unopposed petition to approve minor's compromise. The court sets an Order to Show Cause for August 7, 2026 at 9 a.m. in Department 6 for proof of deposit in the blocked account. Cal. Rules of Court, Rule 7.953(a). If an acknowledgement of receipt by the financial institution is filed before that date, no appearance will be required.

5. CU0002670 Jose A. Valdovinos vs. DD Investments, LLC et al

Defendants DD Investments LLC and Thomas F. Donnell's motion for order dissolving the preliminary injunction is granted.

<u>Legal Standard</u>

"In any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order." Code Civ. Proc. § 533.

In short, section 533 "articulates three independent bases on which a modification of an injunction may be predicated - (1) change in the facts, (2) change in the law, or (3) ends of justice". *Luckett v. Panos* (2008) 161 Cal.App.4th 77, 85. Courts have inherent power to dissolve an injunction on these grounds. *Green Trees Enterprises, Inc. v. Palm Springs Alpine Estates, Inc.* (1967) 66 Cal.2d 782, 788. "[T]he burden is on the restrained party to show by a preponderance of the evidence that one of the circumstances set forth in . . . section 533 is present and justifies a termination of the [preliminary injunction]." *Loeffler v. Medina* (2009) 174 Cal.App.4th 1495, 1504.

Discussion

It is undeniable there has been a material change in the facts upon which the injunction as granted. The foreclosure which triggered the threat of irreparable harm precipitating the grant of the preliminary injunction has been canceled in its entirety and is no longer pending. Shao Decl., ¶ 3; Donnell Decl., ¶ 3. Therefore, the Court finds the harm Defendants will suffer by maintaining the preliminary injunction exceeds any harm Plaintiff might sustain without the preliminary injunction. Consequently, the preliminary injunction is dissolved.